

SENATE No. 2683

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act eliminating predatory transportation pricing of school districts.

PETITION OF:

NAME:

Dylan A. Fernandes

DISTRICT/ADDRESS:

Plymouth and Barnstable

SENATE No. 2683

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 2683) (subject to Joint Rule 12) of Dylan A. Fernandes for legislation to eliminate predatory transportation pricing of school districts. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act eliminating predatory transportation pricing of school districts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 7A of chapter 71 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following paragraph:-

3 The department shall establish a pricing structure, including a daily price cap, for
4 contracts between private transportation companies and school committees for the transportation
5 of pupils receiving special education and out-of-district students, and for the transportation of
6 pupils in school districts receiving funds under the federal McKinney-Vento Homeless
7 Assistance Act, based on factors including the number of students transported daily, the number
8 of miles traveled and the schedule of rates and wages furnished by the commissioner of labor and
9 industries pursuant to the second paragraph, if such a schedule is furnished to a particular school
10 committee. A school transportation commission shall be established within the department to
11 promote fairness, equity and cost transparency in public school transportation for students
12 receiving special education and out-of-district students. The commission shall consist of the

13 following 15 members: 4 members from the department; 5 members serving on a school
14 committee, to be appointed by the commissioner; 3 members representing school transportation
15 providers, to be appointed by the governor; and 3 members of advocacy groups specializing in
16 issues related to students in foster care and experiencing homelessness. The commission shall
17 promulgate regulations, pursuant to chapter 30A, which shall include: (i) guidance on how to
18 better serve pupils in the foster care system or experiencing homelessness, or pupils from
19 migrant communities; and (ii) a system for ensuring compliance with the pricing structure and
20 pricing cap developed by the department. Annually, not later than September 30, the commission
21 shall conduct a review of school transportation contract compliance. Contracts exceeding a
22 financial threshold, to be determined by the commission, shall be subject to direct review and
23 approval, while all other contracts shall be subject to compliance audits and reporting
24 requirements as determined by the commission. The commission shall annually assess the impact
25 of the transportation pricing structure on the educational experience and outcomes for students,
26 including special education, homeless and foster care students. The department shall use the
27 results of the commission's assessment to make necessary adjustments to the pricing structure,
28 policies and guidelines to ensure that the transportation system remains effective and equitable.